

Chapter 2

Meat and edible meat offal

Note.

1.- This Chapter does not cover :

- (a) Products of the kinds described in headings 02.01 to 02.08 or 02.10, unfit or unsuitable for human consumption;
- (b) Guts, bladders or stomachs of animals (heading 05.04) or animal blood (heading 05.11 or 30.02); or
- (c) Animal fat, other than products of heading 02.09 (Chapter 15).

GENERAL

This Chapter applies to meat in carcasses (i.e., the body of an animal with or without the head), half-carasses (resulting from the lengthwise splitting of a carcass), quarters, pieces, etc., to meat offal, and to flours and meals of meat or meat offal, of all animals (except fish and crustaceans, molluscs and other aquatic invertebrates - Chapter 3), suitable for human consumption.

Meat and meat offal unsuitable or unfit for human consumption are excluded (heading 05.11). Flours, meals and pellets unfit for human consumption, obtained from meat or meat offal, are also excluded (heading 23.01).

Offal generally can be grouped in four categories :

- (1) That which is mainly used for human consumption (e.g., heads and cuts thereof (including ears), feet, tails, hearts, tongues, thick skirts, thin skirts, cauls, throats, thymus glands).
- (2) That which is used solely in the preparation of pharmaceutical products (e.g., gall bags, adrenal glands, placenta).
- (3) That which can be used for human consumption or for the preparation of pharmaceutical products (e.g., livers, kidneys, lungs, brains, pancreas, spleens, spinal cords, ovaries, uteri, testes, udders, thyroid glands, pituitary glands).
- (4) That, such as skins, which can be used for human consumption or for other purposes (e.g., manufacture of leather).

The offal referred to in paragraph (1), fresh, chilled, frozen, salted, in brine, dried or smoked, remains classified in this Chapter unless it is unfit for human consumption, in which case it is to be classified in heading 05.11.

The offal referred to in paragraph (2) falls in heading 05.10 when fresh, chilled, frozen or otherwise provisionally preserved and in heading 30.01 when dried.

The offal referred to in paragraph (3) is classified as follows :

- (a) In heading 05.10 when provisionally preserved for the preparation of pharmaceutical products (e.g., in glycerol, acetone, alcohol, formaldehyde, sodium borate).
- (b) In heading 30.01 when dried.

- (c) In Chapter 2 when suitable for human consumption, but in **heading 05.11** if unfit for human consumption.

The offal referred to in paragraph (4) is classified in Chapter 2 when suitable for human consumption or generally in **heading 05.11** or **Chapter 41** if unfit for human consumption.

Guts, bladders and stomachs of animals (other than fish), whether or not edible, are classified in **heading 05.04**.

Animal fat presented separately is **excluded (Chapter 15)** (except in the case of pig fat, free of lean meat, and poultry fat, not rendered or otherwise extracted, which fall in **heading 02.09** even if fit only for industrial use), but fat presented in the carcass or adhering to meat is treated as forming part of the meat.

Distinction between meat and meat offal of this Chapter and those of Chapter 16.

This Chapter covers meat and meat offal in the following states only, whether or not they have been previously scalded or similarly treated but not cooked :

- (1) Fresh (including meat and meat offal, packed with salt as a temporary preservative during transport).
- (2) Chilled, that is, reduced in temperature generally to around 0 °C, without being frozen.
- (3) Frozen, that is, cooled to below the product's freezing point until it is frozen throughout.
- (4) Salted, in brine, dried or smoked.

Meat and meat offal, slightly sprinkled with sugar or with an aqueous solution of sugar are also classified in this Chapter.

Meat and meat offal in the states referred to in Items (1) to (4) above remain classified in this Chapter whether or not they have undergone tenderising treatment with proteolytic enzymes (e.g., papain) or have been cut, chopped or minced (ground). In addition, mixtures or combinations of products of different headings of the Chapter (e.g., poultry meat of **heading 02.07** covered with pig fat of **heading 02.09**) remain classified in this Chapter.

Meat and meat offal not falling in any heading of this Chapter are classified in **Chapter 16**, e.g. :

- (a) Sausages and similar products, whether or not cooked (**heading 16.01**).
- (b) Meat and meat offal cooked in any way (boiled, steamed, grilled, fried or roasted), or otherwise prepared or preserved by any process not provided for in this Chapter, including those merely covered with batter or bread crumbs, truffled or seasoned (e.g., with pepper and salt), as well as liver pastes and patés (**heading 16.02**).

This Chapter also includes meat and meat offal suitable for human consumption, whether or not cooked, in the form of flour or meal.

It should be noted that meat and meat offal of this Chapter remain classified here even if put up in airtight packings (e.g., dried meat in cans). In most cases, however, products put up in these packings have been prepared or preserved otherwise than as provided for in the headings of this Chapter and, accordingly, are classified in Chapter 16.

Similarly, meat and meat offal of this Chapter remain classified here (e.g., fresh or chilled meat of bovine animals) when subjected to packaging by means of a Modified Atmospheric Packaging (MAP) process. In a MAP process the atmosphere surrounding the product is altered or controlled (e.g., by removing or reducing the oxygen content and replacing it with or increasing the nitrogen or carbon dioxide content).

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Subheading Explanatory Note.

With bone in

The expression "with bone in" means meat with all bones intact, as well as meat where some or part of the bones have been removed (e.g., shankless and semi-boneless hams). This expression does not cover products where the bones have been removed and thereafter reinserted so that they are no longer connected to the meat tissues.

02.01

02.01 - Meat of bovine animals, fresh or chilled.

0201.10 - Carcasses and half-carcasses

0201.20 - Other cuts with bone in

0201.30 - Boneless

This heading covers fresh or chilled meat of domestic or wild bovine animals of heading 01.02.

02.02 - Meat of bovine animals, frozen.

0202.10 - Carcasses and half-carcasses

0202.20 - Other cuts with bone in

0202.30 - Boneless

This heading covers frozen meat of domestic or wild bovine animals of heading 01.02.

02.03

02.03 - Meat of swine, fresh, chilled or frozen.

- Fresh or chilled :

0203.11 -- Carcasses and half-carcasses

0203.12 -- Hams, shoulders and cuts thereof, with bone in

0203.19 -- Other

- Frozen :

0203.21 -- Carcasses and half-carcasses

0203.22 -- Hams, shoulders and cuts thereof, with bone in

0203.29 -- Other

This heading covers fresh, chilled or frozen meat of pigs and other swine, whether domestic or wild (e.g., wild boars). The heading includes streaky pork and similar meats interlarded with a high proportion of fat, and fat with an adhering layer of meat.

02.04 - Meat of sheep or goats, fresh, chilled or frozen (+).

0204.10 - Carcasses and half-carcasses of lamb, fresh or chilled

- Other meat of sheep, fresh or chilled :

0204.21 - - Carcasses and half-carcasses

0204.22 - - Other cuts with bone in

0204.23 - - Boneless

0204.30 - Carcasses and half-carcasses of lamb, frozen

- Other meat of sheep, frozen :

0204.41 - - Carcasses and half-carcasses

0204.42 - - Other cuts with bone in

0204.43 - - Boneless

0204.50 - Meat of goats

This heading covers fresh, chilled or frozen meat of sheep (rams, ewes and lambs), goats or kids, whether domestic or wild.

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Subheading Explanatory Note.**Subheadings 0204.10 and 0204.30**

For the purposes of subheadings 0204.10 and 0204.30, meat of lamb is meat derived from an animal of the ovine species not more than 12 months of age. The flesh is of fine grain and texture, pinkish-red in colour and of velvety appearance. The weight of carcasses does not exceed 26 kg.

02.05

02.05 - Meat of horses, asses, mules or hinnies, fresh, chilled or frozen.

This heading covers fresh, chilled or frozen meat of those animals which, when live, are classified in heading 01.01.

02.06 - Edible offal of bovine animals, swine, sheep, goats, horses, asses, mules or hinnies, fresh, chilled or frozen.

0206.10 - Of bovine animals, fresh or chilled

- Of bovine animals, frozen :

0206.21 - - Tongues

0206.22 - - Livers

0206.29 - - Other

0206.30 - Of swine, fresh or chilled

- Of swine, frozen :

0206.41 - - Livers

0206.49 - - Other

0206.80 - Other, fresh or chilled

0206.90 - Other, frozen

The edible offal of this heading includes the following : heads and cuts thereof (including ears), feet, tails, hearts, udders, livers, kidneys, sweetbreads (thymus glands and pancreas), brains, lungs, throats, thick skirts, thin skirts, spleens, tongues, caul, spinal cords, edible skin, reproductive organs (e.g., uteri, ovaries and testes), thyroid glands, pituitary glands. For the principles to be applied for the classification of offal, see the General Explanatory Note to this Chapter.

02.07

02.07 - Meat and edible offal, of the poultry of heading 01.05, fresh, chilled or frozen.

- Of fowls of the species *Gallus domesticus* :

0207.11 -- Not cut in pieces, fresh or chilled

0207.12 -- Not cut in pieces, frozen

0207.13 -- Cuts and offal, fresh or chilled

0207.14 -- Cuts and offal, frozen

- Of turkeys :

0207.24 -- Not cut in pieces, fresh or chilled

0207.25 -- Not cut in pieces, frozen

0207.26 -- Cuts and offal, fresh or chilled

0207.27 -- Cuts and offal, frozen

- Of ducks :

0207.41 -- Not cut in pieces, fresh or chilled

0207.42 -- Not cut in pieces, frozen

0207.43 -- Fatty livers, fresh or chilled

0207.44 -- Other, fresh or chilled

0207.45 -- Other, frozen

- Of geese :

0207.51 -- Not cut in pieces, fresh or chilled

0207.52 -- Not cut in pieces, frozen

0207.53 -- Fatty livers, fresh or chilled

0207.54 -- Other, fresh or chilled

0207.55 -- Other, frozen

0207.60 - Of guinea fowls

This heading covers only fresh, chilled or frozen meat and edible offal of domestic poultry which, when live, are classified in heading 01.05.

The poultry offal of greatest importance in international trade is chicken, goose or duck livers. These include "fatty livers" of geese or ducks which may be distinguished from other livers by the fact that they are much larger and heavier, firmer and richer in fat; their colour varies from whitish beige to light chestnut, while the other livers are in general of a dark or light reddish colour.

02.08 - Other meat and edible meat offal, fresh, chilled or frozen.

0208.10 - Of rabbits or hares

0208.30 - Of primates

0208.40 - Of whales, dolphins and porpoises (mammals of the order Cetacea); of manatees and dugongs (mammals of the order Sirenia); of seals, sea lions and walruses (mammals of the suborder Pinnipedia)

0208.50 - Of reptiles (including snakes and turtles)

0208.60 - Of camels and other camelids (*Camelidae*)

0208.90 - Other

This heading covers meat and meat offal of the animals classified in heading 01.06, provided that they are suitable for human consumption (e.g., rabbit, hare, frog, reindeer, beaver, whale, turtle).

02.09

02.09 - Pig fat, free of lean meat, and poultry fat, not rendered or otherwise extracted, fresh, chilled, frozen, salted, in brine, dried or smoked.

0209.10 - Of pigs

0209.90 - Other

The pig fat of this heading is restricted to fat free of lean meat; such fat falls in the heading even if suitable only for industrial use. Meat in forms commonly eaten as such is **excluded** (heading **02.03** or **02.10** as the case may be, for example, streaky pork and similar meats interlarded with a high proportion of fat, and fat with an adhering layer of meat).

This heading includes, in particular, the fat found mainly round the pig's viscera and which, when rendered, or otherwise extracted, is classified in heading **15.01**.

Fat of domestic or wild poultry (e.g., of geese), not rendered or otherwise extracted, also falls in the heading; when rendered or otherwise extracted it is **excluded** (heading **15.01**).

Fat from marine mammals is **excluded** (Chapter 15).

02.10 - Meat and edible meat offal, salted, in brine, dried or smoked; edible flours and meals of meat or meat offal.

- Meat of swine :

0210.11 -- Hams, shoulders and cuts thereof, with bone in

0210.12 -- Bellies (streaky) and cuts thereof

0210.19 -- Other

0210.20 - Meat of bovine animals

- Other, including edible flours and meals of meat or meat offal :

0210.91 -- Of primates

0210.92 -- Of whales, dolphins and porpoises (mammals of the order Cetacea); of manatees and dugongs (mammals of the order Sirenia); of seals, sea lions and walruses (mammals of the suborder Pinnipedia)

0210.93 -- Of reptiles (including snakes and turtles)

0210.99 -- Other

This heading applies to all kinds of meat and edible meat offal which have been prepared as described in the heading, **other than pig fat**, free of lean meat, and poultry fat, not rendered or otherwise extracted (**heading 02.09**). The heading includes streaky pork and similar meats interlarded with a high proportion of fat, and fat with an adhering layer of meat, provided they have been prepared as described in the heading.

Salted, dried (including dehydrated or freeze-dried) or smoked meat (e.g., bacon, ham, shoulder) remains classified in this heading if it has been enclosed in guts, stomachs, bladders, skins or similar casings (natural or artificial), **provided** that it has not been previously chopped or minced and combined with other ingredients (**heading 16.01**).

Edible flours and meals of meat or meat offal also fall in this heading; flours and meals of meat or meat offal unfit for human consumption (e.g., for feeding animals) are **excluded** (**heading 23.01**).

The provisions of Explanatory Note to heading 02.06 apply, *mutatis mutandis*, to edible meat offal of this heading.